

Opinion of the Court

JUSTICE ALITO delivered the opinion of the Court.

We consider in this case whether to overrule a longstanding interpretation of the Double Jeopardy Clause of the Fifth Amendment. That Clause provides that no person may be “twice put in jeopardy” “for the same offence.” Our double jeopardy case law is complex, but at its core, the Clause means that those acquitted or convicted of a particular “offence” cannot be tried a second time for the same “offence.” But what does the Clause mean by an “offence”?

We have long held that a crime under one sovereign’s laws is not “the same offence” as a crime under the laws of another sovereign. Under this “dual-sovereignty” doctrine, a State may prosecute a defendant under state law even if the Federal Government has prosecuted him for the same conduct under a federal statute.

Or the reverse may happen, as it did here. Terance Gamble, convicted by Alabama for possessing a firearm as a felon, now faces prosecution by the United States under its own felon-in-possession law. Attacking this second prosecution on double jeopardy grounds, Gamble asks us to overrule the dual-sovereignty doctrine. He contends that it departs

R. Edwards, and Randall Marshall; for Criminal Defense Experts by Paul D. Clement and George W. Hicks, Jr.; for Criminal Procedure Professors by Peder K. Batalden, Barry R. Levy, and Stephen E. Henderson, pro se; for Law Professors by Stuart Banner and Paul G. Cassell, both pro se; for the National Association of Criminal Defense Lawyers et al. by Jonathan L. Marcus, Paul M. Kerlin, David M. Porter, Daniel L. Kaplan, and Donna F. Coltharp; for The Rutherford Institute by John W. Whitehead; for the U. S. Navy-Marine Corps Appellate Defense Division et al. by Rebecca S. Snyder, Daniel E. Rosinski, John C. Reardon, Jane E. Boomer, Christopher D. Carrier, and Elizabeth G. Marotta; and for Sen. Orrin Hatch by Adam G. Unikowsky.

Briefs of *amici curiae* urging affirmance were filed for the National Association of Counties et al. by Gordon D. Todd, Joshua J. Fougere, and Lisa Soronen; and for the National Indigenous Women’s Resource Center et al. by Mary Kathryn Nagle.

Adam Harris Kurland filed a brief for the Howard University School of Law Thurgood Marshall Civil Rights Center as *amicus curiae*.